

23SMCV02619 23SMCV02619

County: los-angeles

Division: Civil Law and Motion

Department: 207

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TENTATIVE RULING

DEPARTMENT

207

HEARING DATE

August 19, 2026

CASE NUMBER

23SMCV02619

MOTION

Post Undertaking

MOVING PARTIES

Plaintiffs Skye Hoppus and Mark Hoppus, as Trustees of The
Rollo Tomassi Trust

OPPOSING PARTY

Defendant Connie Chein

MOTION

This case arises from a dispute between neighbors regarding foliage on Defendant Connie Chein's ("Defendant" or "Chein") property, obstructing the view from the property of Plaintiffs Skye Hoppus and Mark Hoppus, as trustees of the Rollo Tomassi Trust ("Plaintiffs").

On June 9, 2023, Plaintiffs filed the operative Complaint, alleging a single cause of action for injunctive relief to enforce a view restoration resolution.

Following a bench trial, on February 3, 2026, the Court entered a judgment in favor of Plaintiffs, granting a permanent injunction. On April 22, 2026, the Court denied Defendant's motion to tax costs and awarded Plaintiffs' costs in the amount of \$33,441.93. On May 11, 2026, the Court granted Plaintiff's motion for attorneys' fees and awarded Plaintiffs attorneys' fees in the amount of \$655,572.97.

On April 1, 2026, Defendant filed a notice of appeal.

Plaintiffs now move for an order requiring Defendant to post an undertaking to stay execution of the judgment, pending the appeal. Defendant opposes the motion and Plaintiffs reply.

REQUEST FOR JUDICIAL NOTICE

Plaintiffs request judicial notice
of the following:

1. Deed of Trust, recorded with the Los Angeles County Recorder's Office on July 17, 2024. A true and correct certified copy of the Deed of Trust is attached to the declaration of Brian T. Nguyen ("Nguyen Declaration") as Exhibit "A".
2. Full Reconveyance, recorded with the Los Angeles County Recorder's Office on April 7, 2026. A true and correct certified copy of the Full Reconveyance is attached to the Nguyen Declaration as Exhibit "B".
3. Quitclaim Deed, recorded with the Los Angeles

County Recorder's Office on January 20, 2026. A true and correct certified copy of the Quitclaim Deed is attached to the Nguyen Declaration as Exhibit "C".

4. Deed of Trust, recorded with the Los Angeles

County Recorder's Office on March 19, 2026. A true and correct certified copy of the Deed of Trust is attached to the Nguyen Declaration as Exhibit "D".

Courts can take judicial

notice of the existence and recordation of real property records, including deeds, if authenticity is not reasonably disputed. (Fontenot v. Wells Fargo Bank, N.A. (2011) 198 Cal.App.4th 256, 264-265.)

"The official act of recordation and the common use of a notary public in the execution of such documents assure their reliability, and the maintenance of the documents in the recorder's office makes their existence and text capable of ready confirmation, thereby placing such documents beyond reasonable dispute." (Ibid.) Moreover, courts can take judicial notice not only of the existence and recordation of recorded documents but also matters that can be deduced from the documents, including the parties, dates, and legal consequences of recorded documents relating to real estate transactions. (Ibid.)

Therefore, the Court takes judicial notice of Exhibits A-D.

EVIDENTIARY OBJECTIONS

The

Court rules as follows with respect to Plaintiffs' evidentiary objections to the Fu Declaration:

1.

Overruled

2.

Overruled

3.

Overruled

4.

Overruled

5.

Overruled

6.

Overruled

7.

Overruled

8.

Overruled

9.

Overruled

10. Overruled

11. Overruled

12. Overruled

13. Overruled

14. Overruled

15. Overruled

16. Overruled

17. Overruled

ANALYSIS

1.

Undertaking

In general, the perfecting of an appeal stays proceedings in the trial court upon the judgment or order appealed from, including enforcement of the judgment or order.

(Code Civ. Proc., § 916, subd. (a).)

However, an appeal does not stay enforcement of the judgment or order for cases involving the payment of money (excluding awards solely for costs & fees) (Code Civ. Proc., § 917.1); hazardous substances (Code Civ. Proc., § 917.15); the assignment, delivery, or sale of personal property (Code Civ. Proc., § 917.2); the execution of one or more instruments (Code Civ. Proc., § 917.3); the conveyance or delivery of possession of real property (Code Civ. Proc., § 917.4); the appointment of a receiver (Code Civ. Proc., § 917.5); specific performance of two or more acts specified in sections 917.1 through 917.5 (Code Civ. Proc., § 917.6); enforcement of a right to attach order (Code Civ. Proc., § 917.65); child custody (Code Civ. Proc., § 917.7); an award of attorneys' fees or costs rendered pursuant to the Family Code (Code Civ. Proc., § 917.75); or in certain actions involving government or corporate actions (Code Civ. Proc., § 917.8); unless an undertaking is given or other certain criteria are satisfied.

This case, however, involves a permanent injunction. "The perfecting of an appeal shall not stay enforcement of the judgment or order in cases not provided for in Sections 917.1 to 917.8, inclusive, if the trial court, in its discretion, requires an undertaking and the undertaking is not given," in cases where the "[a]ppellant is required to perform an act for respondent's benefit pursuant to judgment or order under appeal" or where "[t]he judgment against appellant is solely for costs awarded to the respondent by the trial court pursuant to Chapter 6 (commencing with Section 1021) of Title 14." (Code Civ. Proc., § 917.9, subd. (a)(2)-(3), emphasis added.)

In such cases, "[t]he undertaking shall be in a sum fixed by the court and shall be in an amount sufficient to cover all damages which the respondent may sustain by reason of the stay in the enforcement of the judgment or order." (Code Civ. Proc., § 917.9, subd. (b).)

For purposes of that section, "damages" include reasonable compensation for the loss of use of the money or property and costs awarded by the trial court. (Code Civ. Proc., § 917.9, subd. (d)(1)-(2).)

Judicial discretion requiring

an undertaking can be appropriate in cases where the costs judgment is large or the danger of asset dissipation is acute.
(Quiles v. Parent (2017) 10 Cal.App.5th 130, 145.)

Plaintiffs argue both are present in this case. First, the fee award of \$655,572.97 and costs award of \$33,441.93, together totaling \$689,014.90 is sufficiently large, and the 10% interest to accrue on that fee award during the approximate 24-month timeframe the appeal will take will amount to an additional \$137,802.98. (Schack Decl. ¶ 23.)

Second, Plaintiffs argue the risk of asset dissipation is acute, because Chein has already placed assets in a Cook Islands offshore trust designed to avoid claims by creditors and taken steps to encumber and strip the property at issue of equity by recording an \$8.85 million reverse mortgage on the property.

Indeed, these tactics follow a long line of obfuscation on the part of Chein during the course of litigation regarding the ownership of the property. To wit, the property is owned by the Connie Chein Inter Vivos Settlement, a Cook Island trust, whose trustees are Chein and Southpac Trust International, Inc.

On demurrer, Chein originally argued that Southpac Trust International, Inc. was an indispensable party, to which the Court ultimately rejected. (Schack Decl. ¶ 13.) Then, in a discovery dispute, Chein argued she lacked authority to permit an inspection of her property, which authority belonged to the Cook Islands Trust, the Connie Chein Inter Vivos Settlement trust, because she was no longer a trustee. In support, Chein produced at an Informal Discovery Conference 10 pages of documents purportedly demonstrating that she was no longer trustee of the Cook Islands Inter Vivos Settlement trust, but the documents were created after the commencement of the litigation and none of them were recorded.
(Schack Decl. ¶ 13.)

Further, in or around April 2024, while this action was pending, Chein and the Southpac entity took out a line of credit from East West Bank, secured by a deed of trust recorded against

the property, though Chein ostensibly paid back the loan and the deed of trust was reconveyed to Chein and Southpac, as trustees of the Connie Chein Inter Vivos Settlement trust on April 7, 2026. (Schack Decl. ¶¶ 17-19 and Ex. 6, RJN Ex. A-B.) Chein and Southpac also transferred the property to Chein individually by way of quitclaim deed dated November 7, 2025, which was not recorded until January 20, 2026. (Schack Decl. ¶ 20 and RJN Ex. C.)

Then, six weeks after the Court entered final judgment, on March 19, 2026, Chein caused to be recorded a deed of trust securing an \$8.85 million reverse mortgage against the property. (Schack Decl. ¶ 21 and RJN Ex. D.)

In opposition, Chein points out that the Cook Islands trust was created in July 1992; it did not spring up in response to the instant litigation. Further, Chein points out that she is currently the owner of the property, not the trust. Chein also points out that the balance of a reverse mortgage increases over time, not to exceed the face amount of \$8.85 million, that the reverse mortgage replaced an existing mortgage balance of only \$800,000, and Chein argues that there will likely still be equity of over \$2 million in the property even if the full balance is reached. In Reply, Plaintiffs point out that Redfin estimates the value of Chein's property at only \$8,660,339. (Supp. Schack Decl. ¶ 2.)

Chein further distinguishes Quiles on the grounds that the quoted portion was dicta, in light of the fact that, "No argument was made here or below that a discretionary undertaking should be imposed under section 917.9." (Quiles, supra, 10 Cal.App.5th at p. 145.)

Finally, Chein argues, but does not provide evidence, that imposing the discretionary undertaking would be a financial hardship.

But Chein's stated inability to pay the judgment fees underscores, rather than refutes, why an undertaking is appropriate here to secure Plaintiffs' interests, especially in light of the fact that Chein has already taken out a reverse mortgage which apparently depletes the property of up to \$8.85 million of its equity, and repeatedly restructured the property's ownership throughout the course of the litigation.

2.

Reasonableness of Undertaking Amount

Plaintiffs seek an undertaking in the amount of \$926,817.88, representing \$655,572.97 in attorneys' fees already awarded; \$33,441.93 in costs already awarded; \$137,802.98 in prejudgment interest thereon during the approximate 2-year pendency of the appeal; and \$100,000 in projected attorneys' fees and costs incurred in connection with the appeal. (Schack Decl. ¶¶ 22-23.)

Chein has not opposed the reasonableness of the amount, other than to urge generally that no undertaking should be required and it would be a hardship.

Therefore, Plaintiffs have demonstrated the amount requested is reasonable and Chein has not demonstrated otherwise.

CONCLUSION AND ORDER

Finding Plaintiffs have demonstrated an undertaking is warranted to protect their interests during the pendency of the appeal, in light of the large amount of the fee award and the likelihood Chein will be unable or unwilling to pay it later. Further, Plaintiffs have demonstrated the amount requested is reasonable, and Chein has not demonstrated otherwise.

Therefore, the Court grants Plaintiffs' motion and orders Chein to submit an undertaking in the amount of \$926,817.88 within thirty (30) days' notice of the Court's Order as a condition of staying Plaintiff's execution on the attorneys' fees and costs award set forth in the Amended Judgment.

Plaintiffs shall lodge a proposed order in conformance with the Court's ruling on or before August 26, 2026.

Plaintiffs shall also provide notice of the Court's ruling/Order, and file the notice with a proof of service forthwith.

DATED: August 19, 2026 _____/s/ _____

Michael

E. Whitaker

Judge

of the Superior Court